

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Zim Sessoms	Team: Squad #16	CCRB Case #: 202305059	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 06/05/2023 10:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/5/2024	Precinct: 40		
Date/Time CV Reported Tue, 06/06/2023 11:29 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 06/06/2023 11:29 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DTS Jayther Liriano	07542	964614	PSA 7
2. PO James Weck	10752	963803	PSA 7
3. PO Sharday Harris	20722	958684	PSA 7
4. PO Brandon Gonzalez	24845	950515	PSA 7
5. SGT Rafael Pimentel	01369	951060	PSA 7

Officer(s)	Allegation	Inv. Div. Recommendation
A . SGT Rafael Pimentel	Abuse: Sergeant Rafael Pimentel stopped the vehicle in which § 87(2)(b) was an occupant.	A . Within NYPD Guidelines
B . DTS Jayther Liriano	Abuse: Detective Jayther Liriano questioned § 87(2)(b)	B . Substantiated
C . DTS Jayther Liriano	Abuse: Detective Jayther Liriano stopped § 87(2)(b)	C . Within NYPD Guidelines
D . DTS Jayther Liriano	Abuse: Detective Jayther Liriano frisked § 87(2)(b)	D . Substantiated
E . SGT Rafael Pimentel	Abuse: Sergeant Rafael Pimentel frisked § 87(2)(b)	E . Substantiated
F . DTS Jayther Liriano	Abuse: Detective Jayther Liriano frisked § 87(2)(b)	F . Substantiated
G . SGT Rafael Pimentel	Abuse: Sergeant Rafael Pimentel frisked § 87(2)(b)	G . Substantiated
H . SGT Rafael Pimentel	Abuse: Sergeant Rafael Pimentel searched the vehicle in which § 87(2)(b) was an occupant.	H . Substantiated
I . DTS Jayther Liriano	Abuse: Detective Jayther Liriano searched the vehicle in which § 87(2)(b) was an occupant.	I . Substantiated
J . PO Brandon Gonzalez	Abuse: Police Officer Brandon Gonzalez searched the vehicle in which § 87(2)(b) was an occupant.	J . Substantiated
K . DTS Jayther Liriano	Abuse: Detective Jayther Liriano failed to provide § 87(2)(b) with a business card.	K . Within NYPD Guidelines
L . PO Sharday Harris	Abuse: Police Officer Sharday Harris failed to provide § 87(2)(b) with a business card.	L . Within NYPD Guidelines
M . PO Brandon Gonzalez	Abuse: Police Officer Brandon Gonzalez failed to provide § 87(2)(b) with a business card.	M . Within NYPD Guidelines
N . PO James Weck	Abuse: Police Officer James Weck failed to provide § 87(2)(b) with a business card.	N . Within NYPD Guidelines
O . SGT Rafael Pimentel	Abuse: Sergeant Rafael Pimentel failed to provide § 87(2)(b) with a business card.	O . Substantiated

Officer(s)	Allegation	Inv. Div. Recommendation
P . SGT Rafael Pimentel	Abuse: Sergeant Rafael Pimentel failed to provide § 87(2)(b) with a business card.	P . Substantiated
Q . DTS Jayther Liriano	Abuse: Detective Jayther Liriano failed to provide § 87(2)(b) with a business card.	Q . Substantiated
R . PO Brandon Gonzalez	Abuse: Police Officer Brandon Gonzalez failed to provide § 87(2)(b) with a business card.	R . Substantiated
S . PO Sharday Harris	Abuse: Police Officer Sharday Harris failed to provide § 87(2)(b) with a business card.	S . Substantiated
T . PO James Weck	Abuse: Police Officer James Weck failed to provide § 87(2)(b) with a business card.	T . Substantiated
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]

Case Summary

On June 6, 2023, § 87(2)(b) filed this complaint with the CCRB via telephone on behalf of herself, her boyfriend, § 87(2)(b) and his friend, § 87(2)(b).

On June 5, 2023, at approximately 10:00 PM, at § 87(2)(b) in the Bronx, Sergeant Rafael Pimentel, Detective Jayther Liriano, and Police Officers, James Weck, Sharday Harris, and Brandon Gonzalez, of PSA 7, stopped § 87(2)(b) vehicle with § 87(2)(b) and § 87(2)(b) inside (**Allegations (A): Abuse of Authority, Within NYPD Guidelines**). Det. Liriano asked everyone to exit the vehicle and upon doing so, asked § 87(2)(b) if he had a knife on him and asked § 87(2)(b) for his license (**Allegation (B): Abuse of Authority, Substantiated; Allegation (C): Abuse of Authority, Within NYPD Guidelines**). In the presence of Sgt. Pimentel, Det. Liriano then frisked § 87(2)(b) and § 87(2)(b) (**Allegations (D)-(G): Abuse of Authority, Substantiated**). Also in the presence of Sgt. Pimentel, Det. Liriano and PO Gonzalez then searched inside § 87(2)(b) vehicle (**Allegations: (H)-(J) Abuse of Authority, Substantiated**). After searching the vehicle, Det. Liriano told the passengers to return to their vehicle. § 87(2)(b) then asked Det. Liriano for his business card, to which Det. Liriano responded he did not have any, so § 87(2)(b) then took pictures of the officers' badge numbers except for Sgt. Pimentel's (**Allegations (K)-(N): Abuse of Authority, Within NYPD Guidelines (Allegation (O) Abuse of Authority, Substantiated**). None of the officers offered § 87(2)(b) a business card (**Allegations (P)-(T): Abuse of Authority, Substantiated**). The officers left without making an arrest or issuing a summons.

§ 87(2)(g), § 87(4-b)

This investigation is in the possession of five BWC videos from five officers (**BR 01, 02, 03, 04, 05**). This investigation is not in possession of any other video.

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Rafael Pimentel stopped the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that § 87(2)(b) vehicle was double parked.

§ 87(2)(b) stated (**BR 06**) that she was sitting in the front passenger seat § 87(2)(b) beige Lincoln MKZ while he was in the driver's seat and his friend, § 87(2)(b) was in the rear driver's seat. The vehicle was double parked next to § 87(2)(b) and § 87(2)(b) residence. At some point, an unmarked sedan parked behind § 87(2)(b) vehicle and an unmarked van also approached.

Footage from Sgt. Pimentel's BWC shows (**BR 05**) at 1:06, Sgt. Pimentel asking, "Is it green?" At 1:14, § 87(2)(b) vehicle can be seen double parked in the road.

Sgt. Pimentel stated (**BR 07**) that he was in the front passenger seat of an unmarked black van when they drove by a white vehicle that was double parked. PO Gonzalez, who was present in the vehicle, made the decision that they should stop § 87(2)(b) vehicle, as it was double parked, and the vehicle description for the plates came back to a green vehicle of the same make and model.

Det. Liriano stated (BR 08) that he was seated in the front passenger seat of an unmarked black sedan when he and his fellow officers observed a vehicle that was double parked on Morris Avenue. Det. Liriano could not recall who first observed the vehicle, or who ultimately made the decision to conduct the vehicle stop. When Det. Liriano exited his RMP, he noticed the driver of the vehicle § 87(2)(b) was someone who he had previously arrested twice (most recently in March 2023) in the past for stolen vehicles at § 87(2)(b). In both of those arrests, § 87(2)(b) vehicle was initially double parked. As the circumstances of the previous incidents matched the current incident, Dt. Liriano approached § 87(2)(b) to make sure that the vehicle was not stolen.

PO Gonzalez stated (BR 09) that he was in the rear passenger side of the RMP, when Det. Liriano, who was in the front passenger seat, observed § 87(2)(b) vehicle double parked. PO Gonzalez observed that the license plate of § 87(2)(b) vehicle was expired based upon the date of the plates, and noticed it either when they drove by § 87(2)(b) vehicle or when they parked behind it. PO Gonzalez could not recall who made the decision to stop and approach § 87(2)(b) vehicle.

NYC Vehicle Traffic Law 1202 (1)(a) (BR 12) states that it is prohibited to park a vehicle on the roadway side of any vehicle, stopped, standing, or parked at the edge or curb of a street.

It is undisputed that § 87(2)(b) vehicle was committing a traffic violation by being double parked. § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation A** be closed as **Within NYPD Guidelines**.

Allegation (B) Abuse of Authority: Detective Jayther Liriano questioned § 87(2)(b)

Allegation (C) Abuse of Authority: Detective Jayther Liriano stopped § 87(2)(b)

Allegation (D) Abuse of Authority: Detective Jayther Liriano frisked § 87(2)(b)

Allegation (E) Abuse of Authority: Sergeant Rafael Pimentel frisked § 87(2)(b)

Allegation (F) Abuse of Authority: Detective Jayther Liriano frisked § 87(2)(b)

Allegation (G) Abuse of Authority: Sergeant Rafael Pimentel frisked § 87(2)(b)

These allegations were discovered through BWC.

At the beginning of Det. Liriano's BWC (BR 03), Det. Liriano asks § 87(2)(b) for his license and § 87(2)(b) provides his permit. Det. Liriano then asks § 87(2)(b) for his license and § 87(2)(b) provides it. § 87(2)(b) also tells Det. Liriano that his license might be suspended. At 3:08, § 87(2)(b) gives the vehicle's insurance to Det. Liriano. § 87(2)(b) tells Det. Liriano he could not find the registration. At 4:15, Det. Liriano asks § 87(2)(b) to exit the vehicle. At 4:17, Det. Liriano asks § 87(2)(b) "You got anything on you that you're not supposed to have? A knife or anything?" § 87(2)(b) responds, no. At 4:19, Det. Liriano lifts § 87(2)(b) hoodie, before § 87(2)(b) is sent to the back of the vehicle. At 4:29, Det. Liriano asks § 87(2)(b) to exit the vehicle, and at 4:32 begins to frisk § 87(2)(b) legs, before directing him to the back of the vehicle.

PO Weck's BWC (BR 24) shows, at 4:19, Det. Liriano grabbing the front pocket of § 87(2)(b) hoodie and lifting it.

Sgt. Pimentel's BWC (BR 05) is largely consistent with Det. Liriano and PO Weck's BWC; Det. Liriano frisking § 87(2)(b) is captured at 4:20. Det. Liriano's frisk of § 87(2)(b) occurs out of the camera's frame at approximately 4:35.

Det. Liriano stated (BR 08) that he frisked § 87(2)(b) once he exited the vehicle to check for weapons, and asked § 87(2)(b) before he exited the vehicle if he had any weapons on him and if he could check him for weapons. Det. Liriano also frisked § 87(2)(b) because of his previous history and § 87(2)(b) saying that, “everything is good.” Det. Liriano stated that saying “everything is good,” “raises his level,” because typically things are not good and people tend to hide things while saying everything is fine. Det. Liriano had previous encounters with § 87(2)(b) and has been arrested twice in the past (most recent arrest prior to the date of incident was in March) for being in possession of stolen vehicles on Morris Avenue. During one of his arrests, Det. Liriano discovered a knife on § 87(2)(b) when he was suspected of slashing someone. Ammunition was also discovered on § 87(2)(b) while being arrested in the past.

Det. Liriano frisked § 87(2)(b) to check him for weapons. Det. Liriano believed § 87(2)(b) could have potentially had a weapon due to being with § 87(2)(b) and § 87(2)(b) previous actions that he was arrested for. Det. Liriano did not have previous encounters with § 87(2)(b).

Sgt. Pimentel stated (BR 07) that he did not observe any actions by § 87(2)(b) or any of the passengers. Sgt. Pimentel was told by Det. Liriano afterwards that he asked § 87(2)(b) out of the vehicle because of fidgety movements by § 87(2)(b) that included moving around and ducking under seats, which made it difficult for officers to see his hands. Sgt. Pimentel could not recall if § 87(2)(b) or § 87(2)(b) were frisked. When shown footage from his BWC, Sgt. Pimentel stated it was hard to determine if Det. Liriano frisked § 87(2)(b). Sgt. Pimentel, from his angle at the back of the vehicle, could not see any movements § 87(2)(b) was making while in the vehicle.

PO Gonzalez stated (BR 09) that he did not observe any specific actions by § 87(2)(b) or any of the passengers inside the vehicle.

PO Harris (BR 11) stated that she did not see the occupants make any movements or threatening actions towards officers. PO Harris also did observe any of the occupants with a weapon. PO Harris was not sure why Det. Liriano asked the occupants out of the vehicle. PO Harris asked § 87(2)(b) to exit the vehicle because the other occupants were asked to do so.

PO Weck (BR 10) did not make any observations of the occupants of the vehicle as he was focused on running the VIN number.

The NYC Department of Transportation website states (BR 29) that any individual with a learner’s permit may not drive a vehicle unless accompanied by a supervising driver age 21 or older with a valid license to operate the vehicle the permit holder is driving.

§ 87(2)(g) § 87(2)(b) was operating the vehicle under a learner’s permit, § 87(2)(g).
It is therefore recommended that **Allegation C** be closed as **Within NYPD Guidelines**.

In *People v. Forbes*, 283 A.D.2d 92 (2001) (BR 13), the court stated that traffic stops are potentially dangerous, and the risk of harm to both police and the occupants is minimized if the officers routinely exercise unquestioned command of the situation. Legitimate safety concerns of the officers conducting a traffic stop outweigh the minor intrusion to the passenger’s liberty in requesting them to exit the vehicle.

In *People v. Debour*, 40 N.Y.2d 210 (1976) (BR 14), the court concluded that, in order for an officer to frisk an individual, the officers must reasonably suspect that the individual is armed and dangerous. Behavior which is susceptible of innocent as well as culpable interpretation does not constitute probable cause and innocuous behavior alone does not generate a founded or reasonable suspicion that a crime is at hand.

In *People v. Garcia*, 20 N.Y.3d 317 (2012) (BR 15), the court stated that an officer may not, without founded suspicion for the inquiry, ask the occupants of a lawfully stopped vehicle if they possess any weapons.

Although Sgt. Pimentel stated that Det. Liriano informed him of “fidgety” movements, none of the officers present, including Det. Liriano, cited these movements and the BWC did not capture the movements. § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation B** be closed as **Substantiated**.

§ 87(2)(g) it is recommended that **Allegation D** be closed as **Substantiated**.

§ 87(2)(g) it is recommended that **Allegation F** be closed as **Substantiated**.

§ 87(2)(g) it is recommended that **Allegations E and G** be closed as **Substantiated**.

Allegation (H) Abuse of Authority: Sergeant Rafael Pimentel searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (I) Abuse of Authority: Detective Jayther Liriano searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (J) Abuse of Authority: Police Officer Brandon Gonzalez searched the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) stated (BR 06) that Det. Liriano asked everyone inside of the vehicle to exit after § 87(2)(b) provided his license and registration. Det. Liriano and POs Gonzalez and Weck, searched the front seats, glove compartment, the rear passenger seats, and the outside of the front windshield. After searching the vehicle for approximately five to ten minutes, the officers allowed § 87(2)(b) and § 87(2)(b) to return to the vehicle.

Det. Liriano’s BWC (BR 03) shows at 4:47, Det. Liriano asking § 87(2)(b) § 87(2)(b) you said there is nothing in the car, right?” § 87(2)(b) responds, “Na, na, na, hell no.” Det. Liriano then tells § 87(2)(b) “Alright, I’m gonna make sure.” Det. Liriano then searches the rear-driver seat

and squeezes a black plastic bag located on the seat. At 5:12, Det. Liriano tells PO Gonzalez, who is located at the front passenger side area that he can check the vehicle. PO Gonzalez then searches the front-passenger door compartment, the front-passenger seat, and the floorboards. At 5:28, Det. Liriano begins to search the driver-door compartment, the driver-side floorboard, and around the driver's seat. At 6:15, Det. Liriano searches the area by the rear-driver seat. At 6:13 and 6:32, PO Gonzalez is searching the rear-passenger seat. At 6:35, Det. Liriano concludes his search of the vehicle. PO Weck is not observed searching the vehicle. BWCs obtained from the other officers present at the scene are consistent with Det. Liriano's BWC.

Det. Liriano stated (**BR 08**) that he searched § 87(2)(b) vehicle after § 87(2)(b) gave him consent when he told him he was going to search the vehicle to make sure there were no weapons. § 87(2)(b) responded by saying something along the lines of, "Alright." Det. Liriano then searched the front cabin and the rear passenger area of the vehicle, but did not find any weapons in the vehicle. When shown his BWC footage, Det. Liriano stated that § 87(2)(b) telling Det. Liriano there were no weapons in the vehicle was consent for him to search the vehicle. When asked what about this statement gave him consent, Det. Liriano said it was the "okay" said by § 87(2)(b).

PO Gonzalez stated (**BR 09**) that he believed Det. Liriano received consent to search the vehicle from § 87(2)(b) since Det. Liriano told him to search the vehicle. PO Gonzalez did not hear § 87(2)(b) giving consent nor did Det. Liriano inform him how consent was given. PO Gonzalez searched underneath the seats, inside the middle console, on the floor, in the back seats, and the side doors of the vehicle, though no weapons were found. PO Gonzalez was not aware if § 87(2)(b) or § 87(2)(b) appeared to have any weapons as he was communicating with § 87(2)(b) in the front passenger seat.

Sgt. Pimentel stated (**BR 07**) that § 87(2)(b) vehicle was searched due to § 87(2)(b) fidgeting movements that caused a safety concern for officers; however, he was only informed of this after the fact by Det. Liriano and did not observe any movements himself. Sgt. Pimentel did not instruct any officers to search the vehicle, but witnessed Det. Liriano and PO Weck searching the vehicle. Sgt. Pimentel was not aware if any contraband was found in the vehicle and Det. Liriano did not inform him why he searched the specific areas of the vehicle.

PO Harris (**BR 11**) stated that she did not see the occupants make any movements or threatening actions towards any officers. PO Harris also did observe any of the occupants with a weapon.

PO Weck (**BR 10**) did not make any observations of the occupants of the vehicle as he was focused on running the VIN number.

In *People v. Quagliata*, 53 A.D.3d 670 (**BR 16**), the court concluded that consent must be voluntarily given, and not the result of duress or coercion, express or implied, by the actions of officers.

In *People v. Torres*, 74 N.Y.2d 224 (**BR 17**), the court decided that after the occupants had been ordered out of the vehicle and frisked, the officers were not justified in conducting a warrantless search of the vehicle solely on the theoretical basis that the occupants could harm them once allowed back into the vehicle. The court also noted that during a lawful stop, officers may be justified to conduct a warrantless search of the vehicle if the facts reveal that there is an actual and specific danger to the officers' safety inside the vehicle.

While Det. Liriano states he received consent to search § 87(2)(b) vehicle, BWC showed that Det. Liriano never asks for consent, he only informs § 87(2)(b) that he will be searching the vehicle, and § 87(2)(b) never gave consent. § 87(2)(g)

It is therefore recommended that Allegations H-J be closed as **Substantiated**.

Allegation (K) Abuse of Authority: Detective Jayther Liriano failed to provide § 87(2)(b) with a business card.

Allegation (L) Abuse of Authority: Police Officer Sharday Harris failed to provide § 87(2)(b) with a business card.

Allegation (M) Abuse of Authority: Police Officer Brandon Gonzalez failed to provide § 87(2)(b) with a business card.

Allegation (N) Abuse of Authority: Police Officer James Weck failed to provide § 87(2)(b) with a business card.

Allegation (O) Abuse of Authority: Sergeant Rafael Pimentel failed to provide § 87(2)(b) with a business card.

Allegation (P) Abuse of Authority: Sergeant Rafael Pimentel failed to provide § 87(2)(b) with a business card.

Allegation (Q) Abuse of Authority: Detective Jayther Liriano failed to provide § 87(2)(b) with a business card.

Allegation (R) Abuse of Authority: Police Officer Brandon Gonzalez failed to provide § 87(2)(b) with a business card.

Allegation (S) Abuse of Authority: Police Officer Sharday Harris failed to provide § 87(2)(b) with a business card.

Allegation (T) Abuse of Authority: Police Officer James Weck failed to provide § 87(2)(b) with a business card.

§ 87(2)(g), § 87(4-b)

§ 87(2)(b) stated (BR 06) that after the vehicle was searched, she and the other passengers were told to return to their vehicle. § 87(2)(b) then asked Det. Liriano for his business card, to which he responded by saying he had no business cards. § 87(2)(b) then asked all the officers present if she could take a picture of the officers' badge numbers, which all the officers present allowed.

Det. Liriano's BWC (**BR 03**) shows at 6:58, § 87(2)(b) asking Det. Liriano for his business card. Det. Liriano informs § 87(2)(b) that he does not have any on him, but § 87(2)(b) can take his name and badge number as it is the same thing. At 7:06, § 87(2)(b) tells § 87(2)(b) to take Det. Liriano's name and badge number. § 87(2)(b) asks to take a picture, to which Det. Liriano says she can. At 7:14, § 87(2)(b) takes a picture of Det. Liriano's badge and then begins taking pictures of the other officers present. At no point in the BWC does Det. Liriano offer § 87(2)(b) a business card.

PO Gonzalez's BWC (**BR 09**) shows at 7:25, § 87(2)(b) appearing to take a picture of his badge number. PO Gonzalez does not offer a business card to § 87(2)(b).

Sgt. Pimentel's BWC (**BR 07**) shows at 7:00, § 87(2)(b) asking Det. Liriano for his business card. At 7:09, § 87(2)(b) begins to approach Det. Liriano and asks if she can take a picture of his name and shield. As § 87(2)(b) is approaching, Sgt. Pimentel begins to walk away from the incident and walks towards the unmarked van. Sgt. Pimentel does not give a business card to § 87(2)(b).

Det. Liriano's BWC (**BR 03**) shows at 7:07, § 87(2)(b) asking § 87(2)(b) to take a picture of Det. Liriano's name and shield number.

Pictures submitted by § 87(2)(b) (**BR 26**) show images of PO Harris, PO Weck, and Det. Liriano's names and shield numbers.

Det. Liriano stated (**BR 08**) that after searching the vehicle, § 87(2)(b) asked for his business card, to which Det. Liriano responded that he did not have any but informed him that he could take a picture of his name and shield. § 87(2)(b) then proceeded to take a picture of his shield for § 87(2)(b). Det. Liriano stated he would be responsible for providing a business card to everyone present in the vehicle and did not because he ran out of business cards. Det. Liriano did not have any business cards because he ran out after giving them out during his tour. No other individual other than § 87(2)(b) took a picture of his name and shield.

Sgt. Pimentel stated (**BR 28**) that he did not offer to have a picture taken of his badge number as he did not feel he was required to offer a business card because none of the occupants asked him for one. Sgt. Pimentel did recall one of the individuals at the scene asking to take a picture of Det. Liriano's badge. Sgt. Pimentel did not hear any of the occupants ask any officer other than Det. Liriano for their business card. Sgt. Pimentel did not believe he would have been required to give a business card to the occupants of the vehicle as he did not believe he interacted with them enough to require a business card and was not asked for one. Sgt. Pimentel did not see § 87(2)(b) take a picture of any other officers, and once § 87(2)(b) asked to take a picture of Det. Liriano's shield, Sgt. Pimentel was already walking away from the incident due to police action having ended.

PO Gonzalez stated (**BR 09**) that no civilian asked him for his business card during the incident. PO Gonzalez stated he would only be required to give a business card during this incident if a civilian asked him for one. PO Gonzalez confirmed that § 87(2)(b) taking a picture of his badge would be sufficient in lieu of providing his name and shield number.

PO Weck stated (**BR 10**) that no civilians asked for his business card, though he recalled § 87(2)(b) asking Det. Liriano for his. PO Weck stated he was going to give his business card due to the incident being a car stop, but § 87(2)(b) took a picture of his name and shield number after § 87(2)(b) instructed her to. PO Weck explained that a civilian taking a picture of his name and

shield number is “just as good as,” giving a business card. When § 87(2)(b) told § 87(2)(b) to take the pictures for “us,” PO Weck believed it was for everyone in the vehicle. PO Weck would have allowed all three occupants of the vehicle to take a picture of his name and shield number, but only § 87(2)(b) took a picture. PO Weck stated that officers are required to offer their business cards to all occupants of a vehicle when a vehicle stop is conducted. PO Weck already handed out his ten RTKA cards that his command recommends they carry for that day and mentioned that when officers run out of business cards, they are to let civilians write down or physically record/photograph their name and shield. § 87(2)(b) never asked PO Weck for his business card during the incident.

PO Harris stated (BR 11) § 87(2)(b) asked Det. Liriano for a business card, to which Det. Liriano told him that he could take a photo of his name and shield number. PO Harris heard § 87(2)(b) tell Det. Liriano that she was going to record all the officers’ names and shield numbers, which she did. No civilian asked PO Harris for her business card. PO Harris explained that she would provide business cards to all occupants of a vehicle only if they requested. PO Harris also stated that she did not have any business cards on her during the incident as she ran out.

Administrative Guide 304-11 (BR 25) states that a business card is to be offered for a law enforcement activity, except in cases when a summons is issued or an arrest is made. Activities considered law enforcement include frisks, searches of persons or property, including vehicles, and a stop where an officer has reasonable suspicion that a person is committing, has committed, or is about to commit a crime and where a reasonable person would not feel free to leave. Officers are also required to carry the appropriate amount of RTKA cards. Officers are to allow members of the public ample time to write down identification information if supply of RTKA cards becomes depleted.

NYC Administrative Code 14-174 (BR 18) states that an officer does if an officer does not have an adequate number of RTKA cards, they are to allow sufficient time for a civilian to record such information.

As Sgt. Pimentel, Det. Liriano, PO Harris, PO Weck, and PO Gonzalez participated in the vehicle stop, stopped § 87(2)(b) and no summonses were issued, the officers would be required to provide a business card to § 87(2)(b) and § 87(2)(b) § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegations K-N** be closed as **Within NYPD Guidelines**.

As Sgt. Pimentel did not give a business card to § 87(2)(b) and did not allow § 87(2)(b) to take a picture of his name and shield, § 87(2)(g)

§ 87(2)(b) it is recommend that **Allegations O-T**, be closed as **Substantiated**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 20).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 21).
- PO Gonzalez has been a member-of-service for twelve years and has been a subject in six CCRB complaints and fifteen allegations, none of which were substantiated. § 87(2)(g)
- Sgt. Pimentel has been a member-of-service for twelve years and has been a subject in six CCRB complaints and fifteen allegations, none of which were substantiated. § 87(2)(g)
- PO Harris has been a member-of-service for eight years and has been a subject in two CCRB complaints and three allegations, none of which were substantiated. § 87(2)(g)
- Det. Liriano has been a member of service for six years and has been a subject in ten CCRB complaints and thirty-six allegations, of which seven were substantiated:
 - CCRB case number 202008000 involved substantiated allegations of failure to provide RTKA card against Det. Liriano. The Board recommended Command Discipline and the NYPD imposed no disciplinary action.
 - CCRB case number 202202749 involved a substantiated allegation of discourtesy word against Det. Liriano. The Board recommended Command Discipline and the NYPD imposed no disciplinary action.
 - § 87(2)(g)
- PO Weck has been a member of service for six years and has been a subject in thirteen CCRB complaints and thirty-eight allegations, of which thirteen were substantiated:
 - CCRB case number 202003429 involved two substantiated allegations of search (of person), one substantiated allegation of vehicle stop, and one substantiated allegation of

vehicle search. The Board recommended Charges and the NYPD imposed no disciplinary action.

- CCRB case number 202008000 involved two substantiated allegations of failure to provide RTKA card and one substantiated allegation of interference with recording. The Board recommended Charges and the NYPD has yet to impose discipline.
- CCRB case number 202106373 involved a substantiated allegation of failure to provide RTKA card and one substantiated allegation of interference with recording. The Board recommended Charges; however, the statute of limitations expired.

- § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] § 87(2)(g) [REDACTED]
[REDACTED]

Mediation, Civil, and Criminal Histories

- § 87(2)(b) [REDACTED] declined to mediate this complaint.
- As of April 2, 2024, the New York City Officer of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (BR 30).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 16

Investigator:	Zim Sessoms	Inv. Zim Sessoms	05/13/2024
	Signature	Print Title & Name	Date

Squad Leader:	Patrick Yu	IM Patrick Yu	05/14/2024
	Signature	Print Title & Name	Date

Reviewer:			
	Signature	Print Title & Name	Date